

**CV-24-009193 GUZMANAYALA, ROSALBA vs STEWART & JASPER
PROCESSING - Plaintiff Rosalba Guzman-Ayala's Motion for Leave to File
Second Amended Complaint and Order to Add Defendant Sonia
Hernandez - GRANTED.**

County: stanislaus

Division: Civil Law and Motion

Department: 24

Hearing date: 2012-04-02

Motion: The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party. (Civ. Proc. Code § 473(a)(1)). A liberal pleading amendment policy applies to amendments at any stage of the proceedings, up to and including trial, absent prejudice to the adverse party. (Tung v. Chicago Title Co. (2021) 63 Cal.App.5th 734, review denied). The Court has doubts about the meritorious basis of Plaintiff's Proposed Amendment, given that the transcript of Ms. Hayes testimony does not state what Plaintiff alleges Ms. Hayes testified to. Nevertheless, the Court finds that the proposed amendments to the Complaint arise from the same general set of facts and refers to the same offending instrumentalities, accident and injuries as the original complaint. (Davaloo v. State Farm Ins. Co. (2005) 135 Cal.App.4th 409; Espinosa v. Superior Court, (1988) 202 Cal.App.3d 409). Amendment to a Complaint to add a new or alternative legal theory is permitted. (Walton v. Guinn (1986) 187 Cal.App.3d 1354; Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 970). The Court finds that Plaintiff's proposed amendment arises from the same general set of facts as Plaintiff's original complaint, and that permitting the requested amended pleading will not cause any prejudice to Defendant. (Garcia v. Roberts (2009), 173 Cal.App.4th 900). Given trial scheduled for March 2027, Defendant has a reasonable opportunity and sufficient time to answer the Proposed Amendment and to conduct any necessary discovery resulting from said amendment. Plaintiff's motion is accordingly granted. Plaintiff is granted leave to amend her Complaint to add national origin, race, and ethnicity as protected bases, consolidate her causes of action and add relation back allegations. The Court notes no reference to the addition of Ms. Sonia Hernandez as a party to this action regardless of the caption title of Plaintiff's motion and assumes that inclusion was an error. Plaintiff shall file her First Amended Complaint within ten (10) days of the date of service of this order.

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CV-24-009193 - GUZMANAYALA, ROSALBA vs STEWART & JASPER PROCESSING - Plaintiff Rosalba Guzman-Ayala's Motion for Leave to File Second Amended Complaint and Order to Add Defendant Sonia Hernandez - GRANTED.

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Cal.App.4th 900).

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Plaintiff's motion is accordingly granted. Plaintiff is granted leave to amend her Complaint to add national origin, race, and ethnicity as protected bases, consolidate her causes of action and add relation back allegations. The Court notes no reference to the addition of Ms. Sonia Hernandez as a party to this action regardless of the caption title of Plaintiff's motion and assumes that inclusion was an error.

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